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Subject Automated License Plate Recognition (ALPR) System Policy		
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I. PURPOSE

The purpose of this policy is to establish guidelines for the authorized use, access, management, retention, sharing, and oversight of Automated License Plate Recognition (ALPR) technology by the Tell City Police Department (TCPD).

ALPR technology is a law enforcement and public safety investigative tool that may assist personnel in identifying and locating vehicles associated with criminal investigations, stolen vehicles, wanted persons, missing or endangered persons, public safety threats, and other legitimate law enforcement purposes.

ALPR technology is an investigative aid and does not replace sound police practices, officer observations, independent investigation, or applicable requirements concerning reasonable suspicion, probable cause, search warrants, or other legal authority.

The Department is committed to using ALPR technology responsibly while protecting privacy, constitutional rights, civil liberties, and public trust.

II. POLICY

ALPR systems and associated data shall be accessed and used only for legitimate law enforcement or public safety purposes and in accordance with applicable federal and Indiana law, court orders, and Department policy.

ALPR technology shall not be used for personal purposes, harassment, discrimination, retaliation, curiosity, or any purpose unrelated to legitimate Department business.

Compliance with this policy is mandatory.

The Chief of Police, or designee, shall have overall responsibility for administration, oversight, and enforcement of the ALPR program, including authorization of users, training, audits, and corrective action.

III. APPLICABILITY

This policy applies to all TCPD personnel and any authorized vendor, contractor, law enforcement agency, or other entity granted access to Department-managed ALPR systems or data.

The policy applies to fixed, mobile, portable, Flock Safety, and any future ALPR systems utilized by the Department, as well as all ALPR data collected, stored, accessed, searched, transmitted, or shared on behalf of TCPD.

Nothing in this policy supersedes applicable federal or Indiana law, court orders, public-records requirements, or other controlling legal authority. In the event of a conflict, controlling law shall govern.

IV. DEFINITIONS

A. Automated License Plate Recognition (ALPR)

Technology consisting of cameras, software, and related equipment used to automatically detect and capture vehicle license plates and associated vehicle information.

B. ALPR Data

Information captured, processed, generated, or stored by an ALPR system, including license plate characters, vehicle images, date and time of capture, location information, camera identification, and related system information.

C. Alert

A system-generated notification indicating a potential match between an ALPR read and a plate contained on an authorized hot list or notification list.

An alert alone does not establish reasonable suspicion or probable cause and shall be independently verified before enforcement action is taken.

D. Authorized User

A person formally approved and trained by the Department and granted access to the ALPR system.

Access shall be limited to the level necessary to perform assigned duties.

E. Authorized Purpose

A legitimate law enforcement or public safety purpose reasonably related to an employee's duties, an authorized investigation, a public safety concern, or a legitimate Department operation.

F. Hot List

A list of license plates or partial license plates associated with a documented law enforcement or public safety purpose that may generate an ALPR alert.

G. Search

Any manual or automated query, review, filtering, or examination of ALPR data.

H. Verification

The process of independently confirming the accuracy, status, and relevance of an ALPR alert before enforcement or investigative action is taken.

I. Legal Hold

A requirement to preserve specific ALPR information because of an active or reasonably anticipated criminal investigation, prosecution, civil proceeding, court order, public-records obligation, or other lawful requirement.

V. AUTHORIZED USES

ALPR systems and data may be used only for legitimate law enforcement or public safety purposes, including:

1. Criminal investigations;
2. Locating stolen vehicles or license plates;
3. Locating wanted, missing, endangered, or at-risk persons;
4. Identifying or locating vehicles associated with an investigation;
5. Assisting with calls for service and public safety incidents;
6. Developing or corroborating investigative leads;
7. Reviewing historical vehicle information when reasonably related to an authorized investigation;
8. Responding to credible threats to life or public safety;
9. Traffic-safety investigations supported by legitimate law enforcement information;
10. System administration, maintenance, training, auditing, and quality assurance; and

11. Other legitimate law enforcement or public safety purposes approved by the Chief of Police or designee.

The existence of an ALPR record does not, by itself, establish that a vehicle or its occupants were involved in criminal activity.

VI. PROHIBITED USES

ALPR systems and data shall not be accessed, searched, used, retained, or disseminated except as authorized by this policy or applicable law.

Prohibited uses include:

1. Personal use or curiosity searches;
2. Searching for information concerning friends, family members, neighbors, acquaintances, coworkers, or other individuals without an authorized purpose;
3. Harassment, intimidation, retaliation, discrimination, or other improper use;
4. Use based upon race, ethnicity, religion, gender, sexual orientation, political affiliation, or other protected characteristic;
5. Monitoring lawful First Amendment-protected activity without a legitimate law enforcement purpose and legal basis;
6. Investigating a person solely because of the person's lawful exercise of constitutional rights;
7. Commercial, political, or other unauthorized purposes;
8. Sharing information with unauthorized persons;
9. Circumventing security, access, or retention controls;
10. Sharing login credentials;
11. Unauthorized prolonged or targeted surveillance;
12. Accessing the system after authorization has been suspended or revoked; or
13. Any other use inconsistent with Department policy or applicable law.

VII. ALERTS AND VERIFICATIONS

ALPR alerts are investigative leads and shall not be treated as independent confirmation that a vehicle is stolen, wanted, or otherwise subject to enforcement action.

Before taking enforcement action based upon an ALPR alert, personnel shall independently verify the information through an appropriate law enforcement database or other reliable source.

Verification should consider, when applicable:

- Accuracy of the captured license plate;
- Current status of the plate or vehicle;
- Whether the plate is associated with the observed vehicle;
- Vehicle description;

- Current validity of the originating record; and
- Any other information necessary to establish the reliability and relevance of the alert.

Personnel shall not initiate a traffic stop solely on the basis of an unverified ALPR alert.

VIII. DISPATCHER USE OF ALPR

Authorized and trained TCPD dispatchers may use ALPR technology to support legitimate law enforcement and public safety operations.

Dispatcher access is subject to all provisions of this policy concerning authorized use, security, confidentiality, verification, documentation, and prohibited use.

A. Authorized Dispatcher Searches

Dispatchers may conduct ALPR searches when reasonably necessary to support a legitimate law enforcement or public safety purpose, including:

1. At the request of an officer, investigator, or supervisor;
2. In response to a stolen or wanted vehicle;
3. In connection with a missing, endangered, or at-risk person;
4. In connection with a hit-and-run or other vehicle-related offense;
5. In response to an active call for service or investigation;
6. To assist in locating a vehicle associated with an investigation;
7. To assist with a significant public safety incident; or
8. When information received by dispatch reasonably indicates that an ALPR search may assist in the response or investigation.

Dispatchers may initiate a search without a specific officer request when the dispatcher has a legitimate law enforcement or public safety purpose for doing so.

B. Officer-Requested Searches

When conducting a search at the request of an officer or investigator, dispatchers should obtain sufficient information to identify the vehicle or investigation, including, when reasonably available:

- License plate number;
- State of registration;
- Vehicle description;
- Approximate date or time;
- General location;
- Case or incident number, when applicable; and
- Purpose of the search.

The dispatcher shall enter or document the appropriate search justification within Flock when the system provides that capability.

When Flock does not provide an appropriate field, the search purpose shall be documented through CAD, RMS, dispatch notes, or another Department-approved system when required.

C. Dispatcher-Initiated Searches

Dispatcher-initiated searches shall have an identifiable law enforcement or public safety purpose.

Dispatchers shall not conduct searches merely to determine whether information exists concerning a particular person or vehicle.

Routine system-generated ALPR reads do not require individual CAD documentation solely because the system captured a vehicle.

D. ALPR Alerts Received by Dispatch

When dispatch receives or observes an ALPR alert, the dispatcher shall, when practical and appropriate:

1. Review the alert;
2. Verify the information through an appropriate law enforcement database;
3. Notify the appropriate officer or agency;
4. Provide the location and other relevant information;
5. Clearly identify the information as an ALPR alert or investigative lead; and
6. Document the notification or related activity when appropriate.

An ALPR alert shall not be represented as independently verified information unless it has been verified through an appropriate law enforcement database or other reliable source.

E. Communication and Confidentiality

Dispatchers may provide ALPR information to authorized Department personnel when reasonably necessary for a legitimate law enforcement or public safety purpose.

ALPR information shall not be provided to unauthorized persons or used for personal purposes.

F. Emergency Searches

Nothing in this policy shall prevent a dispatcher from conducting an ALPR search when reasonably necessary to address an imminent threat to life, an active violent crime, abduction, endangered person, or other emergency.

Documentation shall be completed as soon as reasonably practicable.

G. Dispatcher Accountability

Dispatchers with ALPR access are authorized users and are subject to the same standards concerning appropriate use, confidentiality, security, documentation, training, and accountability

as other Department personnel.

IXX. ACCESS, SECURITY & USER RESPONSIBILITIES

Access to the Department's ALPR system shall be limited to personnel authorized by the Chief of Police or designee.

Access shall be based upon job responsibilities and limited to the minimum level necessary to perform assigned duties.

Access may be modified, suspended, or revoked when:

- Employment or assignment changes;
- Required training is not completed;
- Misuse is suspected or confirmed;
- The employee no longer has a legitimate operational need;
- Security concerns arise; or
- The Chief of Police or designee determines that access should be restricted.

Each user shall utilize individual login credentials. Sharing usernames, passwords, or authentication credentials is prohibited.

Personnel shall not:

- Download ALPR information to unauthorized devices;
- Photograph or record ALPR information for personal purposes;
- Store ALPR information on personal devices or personal cloud storage;
- Email ALPR information to unauthorized persons; or
- Circumvent system security controls.

Suspected unauthorized access, disclosure, loss, or misuse shall be promptly reported to a supervisor and the Chief of Police or designee.

X. VENDOR AND THIRD PARTY ACCESS

Vendor and contractor access shall be limited to legitimate technical or administrative purposes, including installation, configuration, maintenance, troubleshooting, system upgrades, training, auditing, or technical support.

Such access shall be limited in scope and duration whenever reasonably practicable.

Vendor personnel shall not independently use, analyze, retain, or disseminate TCPD ALPR data except as specifically authorized by the Department and applicable contractual agreements.

XI. TRAINING

All personnel shall complete Department-approved ALPR training before receiving system access.

Training shall address, as applicable:

- ALPR capabilities and limitations;
- Authorized and prohibited uses;
- Privacy and constitutional considerations;
- Alert verification;
- Search and documentation requirements;
- Data security and retention;
- Information sharing;
- Department policy; and
- Consequences of misuse.

ALPR training shall be incorporated into the Department's initial training curriculum for new dispatchers and other personnel requiring ALPR access.

ALPR policy review and refresher training shall be included in continuing education as determined by the Department and whenever significant changes occur to the ALPR system, applicable law, or Department policy.

Training completion shall be documented.

XII. DATA COLLECTION AND RETENTION

ALPR systems shall be deployed and operated in accordance with applicable law.

ALPR cameras shall generally capture vehicles and license plates lawfully visible from the camera's authorized location or vantage point.

The Department shall not intentionally use ALPR technology to circumvent a lawful expectation of privacy or obtain information from an area the Department is otherwise prohibited from observing.

ALPR technology shall not be used as a substitute for a search warrant, court order, or other legal authorization when such authorization is required by law.

ALPR data shall be retained only as authorized by Department policy, applicable law, contractual requirements, and legitimate investigative needs.

Routine ALPR data shall be retained in accordance with the Department's approved Flock configuration and applicable records-retention requirements unless a different period is required by law, court order, legal hold, evidentiary requirement, or Department policy.

ALPR information subject to a legal hold, active criminal investigation, prosecution, or

evidentiary requirement shall be preserved for the period required by law or Department policy.

XIII. INVESTIGATIVE SEARCHES

Historical ALPR data may be searched when reasonably related to a legitimate law enforcement or public safety purpose.

Authorized searches may include:

- Determining whether a vehicle was present at or near a crime scene;
- Locating a stolen vehicle;
- Identifying a vehicle associated with a suspect or investigation;
- Developing or corroborating investigative leads;
- Determining vehicle movements relevant to an investigation; or
- Locating a missing or endangered person.

Personnel shall not conduct broad or indiscriminate searches merely to determine whether information concerning a person or vehicle exists.

When required by Department procedure or system functionality, searches shall be documented sufficiently to identify the investigative or public safety purpose.

XIV. INFORMATION SHARING AND PUBLIC RECORDS

ALPR information may be shared with authorized law enforcement or public safety agencies when the disclosure serves a legitimate law enforcement or public safety purpose and complies with applicable law.

The receiving agency shall be responsible for complying with applicable laws and policies governing its use and dissemination of the information.

ALPR information shall not be provided to private individuals or entities for personal, commercial, political, or other unauthorized purposes.

Nothing in this policy prohibits disclosure required by law, court order, subpoena, or applicable public-records requirements.

Requests for ALPR records shall be processed in accordance with applicable Indiana law and Department procedures.

Personnel shall not independently release ALPR records in response to a public-records request unless authorized to do so.

XV. AUDITING AND OVERSIGHT

The Department shall periodically review ALPR system access and use and shall conduct an audit at least annually.

Audits may include:

- User access;
- Search activity;
- Search justifications;
- Information sharing;
- Account activity;
- Administrative changes;
- System configuration;
- Retention compliance; and
- Potential misuse.

Additional audits may be conducted at the direction of the Chief of Police or designee.

Audit findings shall be documented and retained in accordance with applicable records-retention requirements.

XVI. MISUSE AND CORRECTIVE ACTION

Misuse of ALPR technology or data will not be tolerated.

Violations of this policy may result in:

- Counseling or corrective action;
- Additional training;
- Suspension or revocation of system access;
- Administrative discipline;
- Termination of employment when appropriate;
- Referral for criminal investigation when warranted; or
- Other action authorized by law or Department policy.

The Department may take immediate action when misuse presents a security, legal, or public safety concern.

XVII. TRANSPARENCY AND PUBLIC TRUST

The Department recognizes that responsible use of ALPR technology depends upon public confidence.

TCPD shall seek to maintain appropriate transparency concerning the purpose and general operation of its ALPR program while protecting legitimate investigative information, officer safety, system security, and individual privacy.

The Department may publish aggregate or summary information regarding ALPR use when appropriate.

The Department is not required to publicly disclose information that would compromise an active investigation, reveal sensitive operational information, compromise system security, or otherwise constitute information protected from disclosure by law.

XVIII. SYSTEM ADMINISTRATION

The Chief of Police shall designate personnel responsible for administration of the ALPR program.

The ALPR administrator shall, as applicable:

1. Manage authorized user access;
2. Ensure required training is completed;
3. Coordinate with the ALPR vendor;
4. Monitor system functionality;
5. Coordinate audits;
6. Address reported misuse;
7. Assist with policy compliance;
8. Coordinate preservation of information when required; and
9. Recommend program or policy changes when necessary.

XIX. POLICY REVIEW

This policy shall be reviewed periodically and updated as necessary to reflect:

- Changes in Indiana or federal law;
- Changes in constitutional or judicial requirements;
- Changes in ALPR technology;
- Changes in Flock Safety functionality;
- Changes in Department operations;
- Changes in records-retention requirements; and
- Recognized law enforcement best practices.

The Chief of Police or designee shall initiate revisions when necessary.

XX. EMPLOYEE RESPONSIBILITY

All personnel authorized to access the TCPD ALPR system are responsible for understanding and complying with this policy.

Employees who become aware of potential misuse, unauthorized access, or unauthorized disclosure shall promptly notify a supervisor or the Chief of Police or designee.